

Karina Peggau

Tue, Jun 30 at 5:44 PM ☆

From: kpeggau@bernco.gov**To:** Victoria Chavez**Cc:** Elvira Lopez, Nicholas Hamm

Victoria,

I have recorded your comment, and it will be presented tomorrow as additional items to be added to the record. Thank you.

To answer your question, this is an administrative policy. In general, we have a noon deadline which takes place 8 days before the hearing (June 23, 2026). This deadline allows comments to be compiled, uploaded online, and reviewed by the County Planning Commission. **Comments received before the noon deadline are automatically entered into the record.** This deadline is advertised via the legal ad, which is posted to the Albuquerque Journal (see attached), AND via the Notice of Hearing, which is sent to the applicant, appellant, and any interested party who has requested in writing to be notified of the hearing (attached). [Section 24 of the County's Zoning Code](#) is where you can find information about our hearing process. Below is the text in question:

Section 24.B.4.d. *Upon receipt of the [appeal], the Board of Adjustment shall set the matter for hearing and **give notice by mail of the time, place, and purpose thereof to the appellant, to the Zoning Administrator, and to any interested party who has requested in writing to be so notified. No other notice thereof need be given** except in those cases hereinafter mentioned. In cases where the appeal is from a determination granting or denying a variance or a conditional use, the Board of Adjustment shall not reverse or modify, in whole or in part, any determination of the Zoning Administrator unless notice of the time, place, and purpose of the hearing has been given in the same manner as prescribed for the holding of hearings before the Zoning Administrator.*

Comments received after the noon deadline **are not automatically entered into the record because our administrative deadline has**

passed. However, they can be collated and presented to the County Planning Commission as a courtesy, and it is up to the County Planning Commission whether to enter the items into the record. For cases that receive few comments, this is a straightforward process. For cases that receive larger amounts of public comment, this is more challenging because there are more materials to present to the County Planning Commission. We set internal deadlines to allow us to collate the materials, record who wrote them, print, and present the materials at the hearing. The deadline I sent in my standard email was an internal deadline.

I have copied my manager, Elvira Lopez, and director, Nick Hamm, to this email in case you have further questions about our process.

Thank you,
Karina

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